

15-16. 26CV00248 BAM PROPERTIES LLC V. CITY OF OROVILLE

EVENTS: (1) Respondent and Defendant City of Oroville's Demurrer to First Amended Petition for Writ of Mandate and Complaint of Petitioner and Plaintiff BAM Properties LLC

(2) Status Conference

As to the Second Cause of Action for Violation of California Public Records Act ("CPRA" herein) and the California Constitution Failure To Assist, Conduct An Adequate Search and Produce Responsive Records, the Court finds that Petitioner/Plaintiff has failed to allege the existence of a public record. The Petitioner/Plaintiff must identify the requested record as a "public record" under the CPRA, which is defined as any writing containing information relating to the conduct of the public's business that is prepared, owned, used, or retained by any state or local agency. The Demurrer to the Second Cause of Action is sustained, and the Court grants leave to amend.

The Third Cause of Action for Violation of California Public Records Act Failure to Allow Inspection of Records and Failure to Produce Records Vesting Building Code Enforcement Authority and Identifying the Individual Authorized as the City's Building Official is sufficiently plead [see Amended Petition for Writ of Mandate at ¶¶87-94]. The Demurrer to the Third Cause of Action is overruled.

Finally, the Fourth Cause of Action for Petition for Writ of Mandate is sufficiently plead [see Amended Petition for Writ of Mandate at ¶¶7, 17-18, 23, 95-104]. The Demurrer to the Fourth Cause of Action is overruled.

The Status Conference is continued to August 12, 2026 at 10:30 a.m. Counsel are to submit a Status Report seven days prior to the hearing.

Counsel for the Respondent/Defendant shall prepare and submit a form of order consistent with this ruling within two weeks, and any amended Petition shall be filed and served within 14 days' notice of the order.